

SOURCES SOUGHT NOTICE

This is a Sources Sought notice. This is NOT a solicitation for proposals, proposal abstracts, or quotations. Pursuant to 48 CFR Part 326, Subpart 326.603-3 and IHM 5.5-6, Indian Health Service must use the negotiation authority of the Buy Indian Act, 25 U.S.C. 47, to give preference to Indian Economic Enterprises (IEE) whenever the use of that authority is authorized and practicable.

The Government is seeking to identify Indian Small Business Economic Enterprises (ISBEEs), Indian Economic Enterprises (IEE) capable of performing the below Indian Health Services (IHS) requirement. Any vendor responding to this notice should submit their capability statement as well as the Buy Indian Act Indian Economic Enterprise Representation Form (Attachment B). Instructions for submission are outlined below.

Consistent with the revised Buy Indian Act, HHS/HIS adopted the definition of an Indian Economic Enterprise (IEE) set forth in 48 CFR 1480.201. This definition includes the following requirement, amongst others: “the Indian or Indian Tribes must together, receive at least a majority of the earnings from the contract”.

DEFINITIONS

INDIAN ECONOMIC ENTERPRISE (IEE):

Any business activity owned by one or more Indians, Federally Recognized Indian Tribes, or Alaska Native Corporations provided that:

- The combined Indian, Federally Recognized Indian Tribe or Alaska Native Corporation ownership of the enterprise constitutes not less than 51%;
- The Indian, Federal Recognized Indian Tribes, or Alaska Native Corporations must, together, receive at least 51% of the earnings from the contract; and
- The management and daily business operations must be controlled by one or more individuals who are Indians

DESCRIPTION OF REQUIREMENT

NAICS:

562112 – Hazardous Waste Collection

PSC:

F108 – Environmental Systems Protection – Environment Remediation. Includes: Toxic and Hazardous Substance removal, clean up, and disposal.

Size Standard: \$47.0 Million

Duration:

Base Year plus Four Option Years = 60 months

DESCRIPTION OF SERVICES:

The Contractor shall be responsible for biweekly removal, transport, treatment, and final disposal of all regulated medical waste, including contaminated sharps at the Northern Cheyenne Service Unit (NCSU), Lame Deer, Montana. This includes supplying NCSU with all containers and associated hardware for mounting or securing. Containers must comply with Department of Transportation (DOT) and American National Standards Institute (ANSI) regulations and standards. The contractor shall be a qualified vendor to remove, transport and discard or destroy used sharp instruments, including but not limited to needles, scalpels, lancets, burs, and scissors. All services shall be performed in accordance with the attached Statement of Work (SOW) (Attachment C), which will provide detailed specifications, performance standards and any additional requirements.

INSTRUCTIONS TO INDUSTRY

ISBEs are highly encouraged to respond to this notice. However, firms must also understand that generic capability statements are not sufficient for effective evaluation of their capacity and capability to perform the work required. To be considered a capable source, responses must directly demonstrate the company's capability, experience, and ability to provide services as shown below.

Your response shall include, but not limited to the following:

- The Contractor will be responsible for all applicable permits, licenses and fees to provide the regulated medical waste disposal services to the Northern Cheyenne Service Unit.
- The Contractor will comply with all federal, state, tribal and local laws when performing the services.
- Demonstrate how your company meets the definition for Indian Economic Enterprise (IEE) in consideration to this requirement.
- Demonstrate how your company will receive at least 51% of the earnings from the awarded contract.
- If identifying a partnership with a subcontractor that is a similarly situated entity, demonstrate how together with the subcontractor you will receive a combined 51% of the earnings from the contract.
- If identifying a partnership with a subcontractor that is NOT a similarly situated entity, demonstrate how you will receive 51% of the earnings from the contract.
- Demonstrate how the prime IEE, or together with the subcontractor, will conduct management and daily operations to be controlled by one or more individuals who are Indians.

Failure to address these items in your capability statement could exclude your firm from being determined a capable IEE/ISBEE source.

SUBMISSION:

If you are interested in this contracting opportunity, please respond by email to: Clarette.Yellowrobe@ihs.gov no later than March 9, 2026 @ 3:00 pm (MST).

Submit the capability response as instructed above and include a copy of the Buy Indian Act Indian Economic Enterprise Representation Form (Attachment B). It is recommended to include the sources sought ID in the subject line.

Sources Sought ID: 75H70926BAO-028-SS Responses received to this notice will assist in determining the acquisition strategy of the requirement.